

Before the
FEDERAL MARITIME COMMISSION

Docket No. 26-08

EALYTEX GLOBAL INC.

v.

COSCO SHIPPING LINES CO., LTD.

DECLARATION OF Krystle Watson

IN SUPPORT OF RESPONDENT'S MOTION FOR PARTIAL SUMMARY JUDGMENT

I, Krystle Watson, hereby declare:

1. I am over 18 years of age and make this declaration based upon my personal knowledge unless otherwise stated.
2. I am employed as Manager-Equipment Control for COSCO Shipping Lines (North America) Inc. ("CSLNA").
3. CSLNA is the U.S. agent of COSCO Shipping Lines Co., Ltd. ("COSCO") for activities in the United States.
4. In my position, I have access to, and am familiar with, the records, billing and accounts-receivable systems maintained by COSCO and CSLNA relating to detention charges for shipments moving through ports in the United States. The records described in this declaration were made at or near the time of the events they record, by or from information transmitted by a person with knowledge, and are kept in the course of

COSCO's and CSLNA's regularly conducted business activity; it is the regular practice of that business to make such records.

5. I have reviewed the records of COSCO and CSLNA relating to the charges and containers identified in the Verified Complaint in FMC Docket No. 26-08, Ealytex Global Inc. v. COSCO Shipping Lines Co., Ltd., including the seventeen containers identified in Paragraph 23 of the Verified Complaint.
6. Attached as Exhibit A is a true and correct copy of COSCO's records reflecting, for each of the seventeen containers identified in Paragraph 23 of the Verified Complaint, the party that was invoiced for and the party that paid the detention charge.
7. COSCO assessed only detention charges on the containers identified in Paragraph 23 of the Verified Complaint. COSCO did not assess demurrage, or storage charges on those containers.
8. Based on that review and on my personal knowledge, COSCO did not issue any invoice to Ealytex Global Inc. ("EGI") for the detention, demurrage, per diem, or storage charges at issue in this proceeding.
9. Based on that review and on my personal knowledge, COSCO has never received any payment directly from EGI for the detention, demurrage, per diem, or storage charges at issue in this proceeding.
10. As reflected in Exhibit A, the detention charges for all seventeen containers identified in Paragraph 23 of the Verified Complaint were invoiced to, and paid by, two motor carriers (truckers)—Golden State Drayage Company and Never Ending Express, Inc.—and EGI was not the invoiced or paying party for any of them.

I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge and recollection.

Executed in: Houston, Texas

Date: 7/10/2026

Declarant Signature: K Watson

Declarant Name: Krystle Watson